Gratian — Decretum, Causa 23, quaestio 1 (c. 1140)

The Boneyard is a collection of works left unfinished, unpublished, or unread at their authors' deaths — dry bones in the valley, in Ezekiel's image. Each presentation tells the scholar's story, weighs what survives of his work, and states plainly what completing it would take, so that a book the world never received whole can be met at last. Each of them was one of one. There will never be another like him, and his light will not shine again except through the work he left behind.

A Boneyard dossier — researched and presented by Robert Tilford, Hays, Kansas. Filed 17 October 2026.

Disclosure: prepared with AI assistance — the six subject reviewers named in the index are AI agents, each desk-checked at this desk; all rulings and final decisions are the author's own.

Dedication

To Gratian, whose book outlived his biography. The folder's dedication calls him "one of history's great anonymous workmen: the man vanished, and the textbook remained," and gives it seven hundred years governing Western Christendom's law — the folder's figure, carried as its wording, not verified. His method earns it: against more than 3,800 contradictory canons — the folder's unverified figure — he stated a case, raised its questions, set the authorities against one another, and resolved them by distinction.

The author's own terms

The deciding term is patience, in Gratian's sense. His dictum before canon 2 answers the Gospel objections (the other cheek, Peter's sword) by keeping the precepts of patience "not so much in outward show of the body as in preparation of the heart," and his closing dictum after canon 7 gathers the question into it. "Benign severity," in canon 2, is Augustine's phrase — Augustine's, never Gratian's.

The story

A master called Gratian taught at Bologna in the 1130s, and probably in the

1120s, and likely died by about 1145: so the Harvard Ames Foundation's report. Beyond that, the record divides three ways, printed here unsettled.

The Harvard report calls him possibly a monk, judges his Camaldolese identification without medieval basis, and holds he almost certainly became a bishop late, of an uncertain city. Winroth is more austere: Robert of Torigny's Chiusi claim cannot be checked; the evidence is contradictory; the oldest manuscripts do not name the author; the Bologna masters are silent.

Against that uncertainty, Giovanna Murano's study — dissent here, not independently corroborated — asserts a Gratian at a Venice trial in 1143, bishop of Chiusi from 1143 until 10 August 1145, successor in 1146. The older Columbia Encyclopedia line, carried only as tradition, makes him a Camaldolese monk at Saints Felix and Nabor, Bologna. The folder marks it unverified; Harvard stands as its correction.

The work and what survives

The *Decretum*, originally *Concordia discordantium canonum*, has three parts: 101 Distinctions; 36 fictitious cases, resolved by canons and dicta; and *De consecratione*, 5 Distinctions. Friedberg's Leipzig edition (1879) is the critical edition and the rendering's source.

Causa 23 is built around bishops who, holding jurisdiction from the emperor, were commanded by the Apostolic See to fight heretical bishops openly and by ambush. Its other questions run from what a just war is to clerics bearing arms. Question 1 alone is held here; the folder presents it — expressly as the editor's framing, not Gratian's claim — as the medieval Christian counterpart to a Quran-alone just-war ethic.

Gratian first argues that the Gospel seems to forbid soldiering. Seven canons answer, five of them Augustine's: on the centurion's servant, patience in the heart; to Boniface, that many in arms can please God; in *Against Faustus*, book 22, what is blamed in war; in sermon 19, that serving for plunder is the sin; and that wars restraining the wicked are peacemaking. Gregory: earthly wars figure spiritual wars, and obedience to the commonwealth is soldiering's praise (Book 12, Letter 24, to the soldiers at Naples). His closing dictum: military service is not a sin.

Its English fortunes

Augustine Thompson's *The Treatise on Laws (Decretum DD. 1–20)* (1993) translates Distinctions 1–20, not Causa 23. In copyright, it was not consulted, the folder records, not even for checking.

No published English translation of Causa 23, quaestio 1 of Gratian's *Decretum* was found after research.

Its bound: the searches (16 October 2026) covered this question, its title as a translated unit, and a just-war anthology's contents. No WorldCat or union-catalogue sweep was made, and no exhaustive anthology or monograph check; such books may render Augustinian passages independently of Gratian's arrangement, narrowing the finding at passage level only, not for the question.

What completing it would take

The rendering must be collated against Friedberg's images; it stands at draft strength, awaiting the medieval-Latin and canon-law review its banner says has not happened. One item is settled here: the folder contradicts itself on Augustine's letter to Boniface — one number in its canon 3 heading, another in its reader guidance — and Friedberg's inscription, checked in the MDZ retyped text (not a page image; no collation of the rendering), reads *epist. CCVII*: 207, and 189 in the standard modern numbering. Completing Causa 23 would take its seven questions; completing the *Decretum* would be orders of magnitude larger.

Sources

- Project folder: `~/workspace/rare-and-obscure-books/books/gratian-decretum-c23-q1/gratian-decretum-c23-q1.txt`
- PIN: `~/workspace/packages/boneyard-extension/research/PIN-gratian.md`
- Harvard Ames Foundation, Gratian: https://amesfoundation.law.harvard.edu/BioBibCanonists/Report_Biobib2.php?record_id=a242
- Friedberg, MDZ, C. 23 q. 1 c. 3: https://geschichte.digitale-sammlungen.de/decretum-gratiani/kapitel/dc_chapter_2_2692